

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.56983 of 2023

Farjana Afrose

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Amio Chackrabarti, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 28.02.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the impugned order No.09 dated 29.11.2022 passed by the learned Metropolitan Special Tribunal No.05, Dhaka in Metropolitan Special Tribunal Case No.663 of 2020 corresponding to G.R. Case No.136 of 2019 arising out of Bimanbandar Police Station Case No.27 dated 18.03.2019 under Section 25B 1(b) of the Special Powers Act, 1974, now pending in the Court of Metropolitan Special Tribunal No.05, Dhaka should not be quashed and/or pass

such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioner was a Cabin Crew of the Saudia Airlines. Upon her arrival at Hajrat Shahjalala International Airport, Dhaka on 18.03.2018 10 pieces of gold bars were recovered from her possession and above gold bars were seized along with her mobile telephone and passport being No.BY0237157 by an Assistant Revenue Officer. The petitioner submitted a petition for giving above passport and mobile phone in her jimma but the learned Judge of Metropolitan Special Tribunal No.5, Dhaka rejected above petition vide impugned order dated 29.11.2022.

Being aggrieved by and dissatisfied with above order dated 29.11.2022 of the learned Judge of the Metropolitan Special Tribunal No.05, Dhaka the petitioner moved to this Court and obtained the Rule.

Mr. Amio Chackrabarti, learned Advocate for the petitioner submits that the passport and mobile telephone were seized from the possession of the petitioner. Those are not unlawful or contraband articles. The petitioner is sick and required to go abroad for medical treatment. Above seized mobile telephone contains personal data of the petitioner and the same is also required for her day to day life. The learned Judge of the Tribunal failed to appreciate above materials on record properly and most illegally rejected the petition for giving above articles in the jimma of the petitioner which is not tenable in law.

Ms. Farhana Afroze Runa, learned Assistant Attorney General for the State submits that since the petitioner was granted bail earlier she would no objection if above articles which belong to the petitioner were given in the jimma to the petitioner on condition that above articles would be produced in the trial Court whenever be asked to do so.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

As mentioned above, the passport and mobile telephone of the petitioner were seized by an Assistant Revenue Officer of the Department of Customs.

The right to freedom of movement is a fundamental right guaranteed by Article 36 of the Constitution of Bangladesh. Above right includes the right of a Bangladesh citizen to leave Bangladesh and enter into Bangladesh again. A passport is an indispensable tool or precondition for exercise of above right to freedom of movement. A valid passport should not be seized by an Assistant Revenue Officer without the sanction of a competent Court of law.

Similarly a mobile telephone has become an indispensable personal article which contains private data and used for communication.

The fate of any article seized in connection of a criminal case is ultimately determined at trial. But the conclusion of trial of a Criminal Cases requires considerable time and during above period seized articles needs be given in jimma to an appropriate person who will ensure proper keeping and maintenance. Since the petitioner was the rightful possessor of above articles she would surely ensure proper keeping and maintenance of those articles if those were given in her jimma.

In above view of the materials on record we find substance in this petition under Section 561A of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The impugned order No.09 dated 29.11.2022 passed by the learned Metropolitan Special Tribunal No.05, Dhaka in Metropolitan Special Tribunal Case No.663 of 2020 is set aside. The learned Judge of the Metropolitan Special Tribunal No.05, Dhaka is

directed to give the seized passport and mobile telephone in the jimma of the petitioner at once with condition that she would produce above articles to the trial Court whenever directed by the trial Court to do so.

However, there is no order as to costs.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

*MD. MASUDUR RAHMAN
BENCH OFFICER*